

1.

CASE #	CASE NAME	HEARING NAME
CVRI2600209	VILLARREAL vs HUMANO LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested to discuss the applicability of the FAA, and, if it does not apply, the enforceability of the class waiver.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405413	NAIDU VS YHODITES & ASSOCIATES MANAGEMENT LLC	MOTION FOR ATTORNEY FEES

Tentative Ruling: Grant. A “prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (C.C.P. §1032(b).) Recoverable costs include “attorney’s fees, when authorized by ... contract, statute, or law.” (C.C.P. § 1033.5(10).) In the present case, Plaintiff accepted Defendant’s 998 Offer, wherein Defendant agreed to pay Plaintiff’s “reasonable attorney’s fees and costs incurred up to the date of this offer.” (Moore Decl., Ex. A.) Defendant does not dispute that Plaintiff is entitled to recover her reasonable attorney’s fees, instead only attacking the reasonableness of Plaintiff’s request.

The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) “A trial court may not rubberstamp a request for attorney fees, but must determine the number of hours reasonably expended.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) The court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as the complexity of the case, procedural demands, skill exhibited, and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal.App.5th 463, 470; see also, *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party’s attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242; see also, *Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid*; see also, *Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.) The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.) The prevailing party has the initial burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Once the initial burden is met, the burden of proof is on